sessions or assizes are to be held. And in that town a proper prison ought to be built.

Gaol delivery is in some counties but once a year. What reparation can be made to a poor creature for the misery he has suffered, and the corruption of his morals, by confinement in a prison near twelve months before a trial, in which, perhaps he is at last declared by his country not guilty?

The judicious marquis, whom I quoted above, asserts that "Privation of liberty being a punishment, ought not to be inflicted before condemnation, but for as short a time as possible." And in cases of guilt, his doctrine is, "The more immediately after the commission of a crime, a punishment is inflicted, the more just and useful it will be." This sentiment is illustrated by a variety of acute remarks in the chapter of "The Advantage of immediate Punishment." My mind reverts to an admirable thought of Mr. Eden's, *Principles of Penal Law*, p. 330. "A very slight reflection, on the numberless unforeseen events which a day may bring forth, will be sufficient to show that we are all liable to the imputation of guilt; and consequently all interested, not only in the protection of innocence, but in the assignment to every particular offence, of the smallest punishment compatible with the safety of society."

One cause of gaol delivery being so seldom, is in some places the expense of entertaining the judges and their retinue. At Hull they used to have the assize but once in seven years. Peacock, a murderer, was in prison there near three years: before his trial the principal witness died; and the murderer was acquitted. They now have it once in three years.

Although acquitted prisoners are by the late act in their favour[1] cleared of gaolers' fees; they are still subject to a similar demand made by clerks of assize and clerks of the peace;[2] and detained in prison several days after their acquittal. At assize, till the judges: at quarter-sessions, till the justices of peace leave the town; in order to obtain those fees, which the gentlemen say are not cancelled by the act. And yet the express words of it are, Acquitted prisoners "shall be immediately set at large in open court." It is evident then, that all fees

[1] Fourteenth George III.

[2] See the table of the fees of the clerks of assize at the end of the book.

The Clerk of the Peace in one county demands as follows:

For larceny and acquitted,	£1	7	0	Whipped publicly,	£1	3	4
Petty larceny . .	1	8	4	Bastardy . .	0	17	4

of the commitment in respect to the prisoner are by this act totally abolished.

Since the said act, the clerks of assize in some circuits have started a new demand upon the gaoler, for the judge's certificate of acquitment; viz. six shillings and eight pence for the first prisoner acquitted; and a shilling for each of the rest: or two shillings for every one. I have copies of two receipts given by the clerk of the western circuit to the gaolers of Exeter and Salisbury. One of them is as follows: "Received 1 April 1775 of Mr. Sherry gaoler one pound eight shillings and eight pence for his certificate entitling him to his gaol fees for the county of Devon per J. F**** Clerk of the Assize." The gaoler told me this was for twenty-three acquitted prisoners.

I was informed at Durham, that Judge Gould, at the assize 1775, laid a fine of fifty pounds on the gaoler for detaining some acquitted prisoners, for the fees of the clerk of assize. But upon the intercession of the Bishop (proprietor of the gaol) the fine was remitted; and the prisoners set at large: the judge ordering the clerk of assize to explain to him in London the foundation of his demand.

One pretence for detaining acquitted prisoners is, that "It is possible other indictments may be laid against them before the judge leaves the town." I call it a pretence, as the grand jury are often dismissed some days before that time, and because those who do satisfy the demands of the clerk of assize are immediately discharged. Another pretence is, the gaoler tells you "he takes them back to knock off their irons." But this may be done in court: in London they have an engine or block, by the help of which they take off the irons with ease in a minute; the machine is brought into court, and the acquitted prisoner is immediately discharged. If, according to what I proposed, prisoners were tried out of irons, this pretext would be entirely removed.

Clerks of assize, and of the peace, ought most certainly to have a consideration for their service to the public: the thing I complain of is what I am led to by my subject, that is, the demand that is made directly or indirectly upon acquitted prisoners.[1]

[1] The clerks of assize give to the judges large sums for their places. One of the present gentlemen gave for his place £2500. On many accounts these places ought not to be bought of the judges. If they were only presented, the fees might be much lower.—The demand from the gaoler for a copy of the judge's calendar is now £1 1s.: whereas his Majesty's Commissioners for inquiring into the officers and their fees, etc. in the